

NATIONAL COMPANY LAW APPELLATE TRIBUNAL
PRINCIPAL BENCH, NEW DELHI

Company Appeal (AT) (Insolvency) No. 787 of 2025

IN THE MATTER OF:

Ottoman Tubes Pvt. Ltd.

...Appellant

Versus

Karan Automotives Pvt. Ltd.

...Respondent

Present:

**For Appellant : Mr. Kushagra Goyal and Mr. Vibhu Anshuman,
Advocates.**

**For Respondent : Mr. Sahil Yadav and Mr. Rishabh Arora,
Advocates.**

O R D E R
(Hybrid Mode)

22.05.2025: Heard counsel for the appellant as well as counsel for the respondent.

2. This appeal has been filed against an order dated 24.05.2025 passed by the adjudicating authority (National Company Law Tribunal, New Delhi, Court IV) by which I.A. No. 1872/ND/2025 has been rejected.

3. On 10.03.2025, the appellant/applicant was allowed three days time to file rejoinder affidavit. Appellant's case is that on 12.03.2025, the rejoinder was filed, certain defects were marked which were cleared on 24.03.2025 and the rejoinder was again refiled. When the matter was taken on 28.03.2025 it was not available on the e-filing portal hence the adjudicating authority closed

the right. Applicant thereafter filed an I.A. praying for recall of the said order in which I.A. the impugned order has been passed.

4. Learned counsel for the appellant submits that the appellant has filed the rejoinder affidavit after serving the copy on the respondent which was filed on 12.03.2025 i.e., within three days time as was allowed on 10.03.2025. Some defect was marked, which was cured and it was re-filed on 24.03.2025 but on the date when the matter was heard on 28.03.2025 it was not showing on e-filing portal.

5. It is submitted that the fact that rejoinder has been filed the appellant within the time, the said rejoinder ought to have been taken on record especially when the copy was already served on the respondent and no prejudice was going to be caused to the respondent.

6. We are of the view that in the facts of the present case when the rejoinder was filed within the time allowed by the Court even though it was not showing on the e-filing portal that was not a ground to reject the application, whereas, in the application filed by the appellant all relevant facts along with the dates have been stated and in the order impugned adjudicating authority has not returned any findings that dates of filing rejoinder given in the application are not correct.

7. In view of the aforesaid we are of the view that rejoinder having been already filed by the appellant, that may be taken on record and adjudicating authority may hear after taking the rejoinder on the record. We make it clear

that we are not expressing any opinion on the merits of the case. It is for the adjudicating authority to consider and take a decision.

Appeal disposed of accordingly.

[Justice Ashok Bhushan]
Chairperson

[Barun Mitra]
Member (Technical)

[Arun Baroka]
Member (Technical)

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